CHAPTER 93 Judgements Relating to the Amendments

Table 93.1 Judgements Declaring Amendments as Unconstitutional

Sl. No.	Case (Year)	Amendment Challenged in the Supreme Court	Provision Declared as Unconstitutional by the Supreme Court
1.	I.C. Golak Nath vs. State of Punjab (1967)	17th Amendment Act, 1964	17th Amendment (in part)
2.	Kesavananda Bharati vs. State of Kerala (1973) (popularly known as the Fundamental Rights case)	25th Amendment Act, 1971	Article 31C (in part)
3.	Indira Nehru Ghandhi vs. Raj Narain (1975) (popularly known as the Election case)	39th Amendment Act, 1975	Article 329A (clause 4)
4.	Minerva Mills vs. Union of India (1980)	42nd Amendment Act, 1976	Article 368 (clauses 4 & 5) and Article 31C (in part)
5.	P. Sambamurthy vs. State of Andhra Pradesh (1986)	32nd Amendment Act, 1973	Article 371D (clause 5 and its proviso)
6.	Kihoto Hollohan vs. Zachillhu (1992) (popularly known as the Defection case)	52nd Amendment Act, 1985	Tenth Schedule (Paragraph 7)
7.	L. Chandra Kumar vs. Union of India (1997)	42nd Amendment Act, 1976	Article 323A (sub-clause (d) of clause 2) and Article 323B (sub-clause (d) of clause 3)
8.	Supreme Court Advocates-on-Record Association vs. Union of India (2015) (popularly known as the Fourth Judges case)	99th Amendment Act, 2014	99th Amendment (total)